COMMENTS RECEIVED ON THE DRAFT METHODOLOGY

Arden Environmental Quality Board, summary of comments

40 comments were received. This summary groups them by theme and does not reproduce them. The Board has not responded to any comment; the draft is not proposed for adoption.

Theme 1: the basis of allocation

14 comments addressed the relationship between the two subsections. Commenters divided. Some said the more specific direction should govern; others said the earlier subsection states the operative rule and the later one merely directs the Board to reduce it to a formula. Several said the Board should decline to adopt either until the Legislature resolves the point.

Theme 2: the price denominator

7 comments objected to a factor expressed per dollar of sales, on the ground that a seller selling the same physical quantity in a high-price year bears a smaller share than in a low-price year. Two commenters proposed volume-based factors and acknowledged that volume is not reported for all classes.

Theme 3: the measuring period

8 comments asked the Board to say over what period the revenue threshold in the definition is measured. The Board's response at the hearing was that it has no authority over that section.

Theme 4: matters outside the draft

11 comments addressed the validity of the Act, the size of the fund, or the property fee. The Board treats these as outside the scope of a methodology rulemaking.

Full text of comments is available in the Board's docket.